

complaint

Mr and Mrs B complain that U K Insurance Limited (UKI) didn't properly inspect the damage to their roof before saying it wouldn't meet a claim they made on their home insurance.

background

Both parties know what's happened here, so I won't go into a lot of detail Mr and Mrs B reported a leak in their attic after some stormy weather – and said also that a door had been blown open by the wind and damaged.

UKI received some photos of the roof, and said it didn't think the damage was caused by a storm. But it said that if Mr and Mrs B got their builder to take close up photos when he did the repairs it would re-consider its decision. Mr and Mrs B sent UKI some more photos, but UKI didn't change its mind. It did agree to pay for the damage to the door, as it said it could cover that under the "accidental damage" part of the policy.

Mr and Mrs B complained, and UKI said it thought it had been reasonable. Unhappy about this Mr and Mrs B brought their complaint to us.

Our investigator didn't think UKI had done anything wrong. Mr and Mrs B don't think that's fair, as they say UKI didn't conduct a proper survey before deciding not to meet the claim, so it hasn't proven it wasn't storm damage. They think UKI should at least pay for part of the repairs.

my findings

I've considered all the available evidence and arguments to decide what's fair and reasonable in the circumstances of this complaint. I'm not going to uphold this complaint, and I'll explain why.

Mr and Mrs B's insurance provides cover for damage caused by unexpected, one off events, in this case a storm. It doesn't (like most policies) provide cover where a roof has failed due to age, design or lack of maintenance.

When I look at a claim for storm damage, I consider three points. Only if all three are present would I decide that a claim for storm damage should be met.

was there a storm at the relevant time?

The weather reports from the time Mr and Mrs B made their claim show that there had been storm conditions in the two weeks before the claim. UKI hasn't disputed this point, so I need make no further comments on this.

is the damage consistent with storm damage?

Mr and Mrs B say UKI should have conducted an in depth survey before deciding the damage wasn't due to a storm, but more likely wear and tear. I don't think that's always necessary. It's often enough to see reasonably clear photos and look at the necessary repairs. That's what a UKI commissioned survey would likely contain if one had been carried out.

The photos I've seen were sent in by Mr and Mrs B. Some are from ground level, but some are close-ups of the damaged part of the roof. The photos are of a valley between two roofs, which is normally a relatively sheltered part of a roof. I can see debris as well as areas of removed tiles and it looks as though the debris is the sort of material that collects over time.

There is a photo of an intact roof, but I can't say if that is before or after repairs. If it was before, it doesn't show signs of typical storm damage. I should also say that if this part of the roof had been damaged by the storm I'd expect there to be more extensive damage elsewhere on more exposed parts – but none was reported.

was this particular damage caused by a storm?

From the photos and the description of the repairs needed, I'm not persuaded this damage was likely caused only by the storms immediately before the leak was noticed. It might be that the last storm exposed the problem, but it's still most likely that the underlying cause is damage that built up gradually.

I've also considered the extent of the repairs carried out. The description of the work, which included clearing the valley and replacing battens and felt, is typical of repairs for damage that's built up over time. It might be that the design of the roof means this area requires more frequent maintenance – but that isn't something UKI can be held responsible for.

I don't think the damage was caused by a one off storm event.

my final decision

My decision is that I do not uphold this complaint.

Under the rules of the Financial Ombudsman Service, I'm required to ask Mr and Mrs B to accept or reject my decision before 20 June 2020.

Sue Peters
ombudsman